

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

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DAVID ASHBY,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD OFFICER RYAN
H. MARAIO (Shield # 5216), NYPD LIEUTENANT
CHARLES D. MIELE, and NYPD OFFICER
JOHN and JANE DOE #'s 1-12 (names and numbers
unknown at this time), and Other Unidentified
members of the New York City Police Department,

Defendants.
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SUMMONS

Basis of Venue
Place of Incident

Plaintiff designates
Kings County
as the place of trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 6, 2023

Respectfully submitted,

/s/ Sydney O'Hagan

Sydney O'Hagan, Esq.

40 Exchange Place

Suite 1000

New York, New York 10005

(774) 218-3461

sydney.ohagan@gmail.com

TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007
NYPD OFFICER RYAN H. MARAIO (Shield # 5216), 60th Precinct, Brooklyn, New York
NYPD LIEUTENANT CHARLES D. DMIELE, 60th Precinct, Brooklyn, New York

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
DAVID ASHBY,

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, NYPD OFFICER RYAN
H. MARAIO (Shield # 5216), NYPD LIEUTENANT
CHARLES D. MIELE, and NYPD OFFICER
JOHN and JANE DOE #'s 1-12 (names and numbers
unknown at this time), and Other Unidentified
members of the New York City Police Department,

Defendants.

-----X
Plaintiff **David Ashby** by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint herein, alleges
upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983 and the rights secured by the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the United States Constitution the laws of the State of New York. Plaintiff was unlawfully stopped, searched, and arrested by the defendants. Plaintiff was deprived of his federal constitutional rights, state constitutional rights, and common law rights when the individually named police defendants subjected him to, among other things, assault, false arrest, unlawful search and seizure, excessive force, malicious prosecution, negligence, gross negligence, intentional and negligent infliction of emotional distress, and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff

seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Plaintiff is a resident of Kings County, State of New York.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.
4. NYPD OFFICER RYAN H. MARAIO, assigned Shield # 5216, who on or about September 7, 2022, was employed with the 60th Precinct of the New York City Police Department ("NYPD") and was at all times relevant herein an officer, employee, and agent of the NYPD.
5. NYPD OFFICER RYAN H. MARAIO (Shield # 5216) is being sued in his individual capacity and official capacity.
6. NYPD LIEUTENANT CHARLES D. MIELE, who on or about September 7, 2022, was employed with the 60th Precinct of the NYPD and was at all times relevant herein an officer, employee, and agent of the NYPD.
7. NYPD LIEUTENANT CHARLES D. MEILE, is being sued in his individual capacity and official capacity.
8. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
10. New York Police Officers John and Jane Doe #'s 2-12 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
11. Police Officers John and Jane Doe #'s 2-12 are being sued in his/her individual capacity and official capacity.

12. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
13. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
14. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
15. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
16. The City of New York held a 50(h)-hearing examination of Plaintiff on September 19, 2023.

STATEMENT OF FACTS

17. On September 7, 2022, at approximately 5:00 p.m., at approximately 2949 West 23rd Street, Brooklyn, New York, numerous police officers from the 60th precinct, including upon information and belief, defendant NYPD Officer Ryan H. Maraio (Shield # 5216), NYPD

Lieutenant Charles D. Miele and P.O. John and Jane Does #1-12, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff.

18. On September 7, 2022, at approximately 5:00 p.m., Plaintiff was walking when NYPD officers, including defendant NYPD Officer Ryan H. Maraio (Shield # 5216), NYPD Lieutenant Charles D. Miele approached him and unlawfully arrested him. At the time of Plaintiff's arrest, defendant officers provided no information regarding the reason for the arrest.
19. Plaintiff Ashby arrived at 2949 West 23rd Street, Brooklyn, New York at approximately 3:30 p.m. in his capacity as a Jewish Community Center ("JCC") violence interrupter. A shooting had just occurred at that location and Plaintiff Ashby's job duties included responding to such events to help deescalate interactions between civilians and police. Upon arrival, defendant NYPD Officers directed Plaintiff to park in a specific location a distance from the where the shooting occurred. Plaintiff Ashby complied with this demand and parked his car where indicated.
20. After completing his duties approximately an hour later, Plaintiff Ashby returned to his vehicle to charge his phone. He also grabbed a charger from his car to give to an acquaintance. After exiting the vehicle, he walked a few feet away. When he turned around, there was a line of officers blocking access to his vehicle. Plaintiff asked defendant officers, which included NYPD Officer Ryan H. Maraio and NYPD Lieutenant Charles D. Miele, why they were preventing him from entering his vehicle. Defendant officers refused to provide an explanation. Plaintiff then attempted to retrieve some personal items from his vehicle. Upon approach of the vehicle, but before entering it, defendant officers grabbed Plaintiff Ashby by the arm and placed handcuffs on his wrists. Defendant officers refused to explain the reason for his arrest.

21. Plaintiff Ashby's JCC supervisor approached defendant officers, including NYPD Officer Ryan H. Maraio and NYPD Lieutenant Charles D. Miele, and explained Plaintiff's presence at the scene. Defendant officers ignored this information.
22. Upon information and belief, Plaintiff was never identified by any witness as being the perpetrator of any crime.
23. While placing Plaintiff into a police vehicle at the scene of his arrest, defendant officers purposely placed the handcuffs very tightly on Plaintiff's wrists, cutting off the circulation to his hands and fingers. They refused to loosen or adjust the handcuffs.
24. Plaintiff suffered prolonged numbness in his wrists due to the tightness of the handcuffs. He received medical treatment for those injuries.
25. Upon release from Central Booking, Plaintiff returned to the precinct to retrieve his vehicle. Defendant officers had obviously searched the vehicle in its entirety, including the interior of the vehicle, the trunk, and glove compartment. A container of gasoline in the trunk had been opened and thrown over clothing in the trunk, destroying those items of clothing and create a hazard. Plaintiff never consented to a search of his vehicle. Upon information and belief, defendant officers did not have a warrant to search the vehicle.
26. During his confinement Plaintiff was subjected to depraved, filthy, and inhumane conditions.
27. As a direct result of Plaintiff's false arrest, he was illegally detained for approximately 25 hours. As a result of defendant officers' use of excessive force, he suffered injury, numbness, and pain to his wrists and hands.
28. On December 8, 2022, all charges against Plaintiff were dismissed and sealed.

FIRST CAUSE OF ACTION

ASSAULT

29. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 29 with the same force and effect as if more fully set forth herein.
30. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to Plaintiff, and that such acts caused apprehension of such contact in Plaintiff. Plaintiff was assaulted by defendant NYPD Officers who grabbed his arm and placed handcuffs on him with excessive tightness, causing pain, swelling, bruising, and numbness to his wrists and hands. Plaintiff never resisted arrest and these actions were not justified.
31. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
32. The City, as the employer of defendants is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION**FALSE ARREST AND FALSE IMPRISONMENT**

33. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 32 as if fully set forth herein.
34. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff,

and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

35. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
36. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

MALICIOUS PROSECUTION

37. The plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 36 with the same force and effect as if more fully set forth at length herein.
38. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York.
39. Defendants commenced and continued a criminal proceeding against Plaintiff with malice and without probable cause, caused him a serious deprivation of liberty as a result, and Plaintiff obtained a favorable termination on the fabricated charges.
40. Defendants commenced and continued a criminal proceeding against Plaintiff.
41. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted because Plaintiff was charged with Obstruction of Government Administration and Disorderly Conduct. Plaintiff never interfered with any official duty and did not act in a disorderly manner. In fact, the allegations contained in the criminal complaint fail to sustain these charges.
42. The prosecution and criminal proceedings terminated favorably to Plaintiff on December 8, 2022.

43. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate his state constitutional and tort rights.
44. The individually named Defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FOURTH CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

45. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.
46. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

FIFTH CAUSE OF ACTION

FAILURE TO INTERVENE

47. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.
48. Defendants had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD, subjecting Plaintiff to, *inter alia*, assault, unlawful search and seizure, and illegal detention.
49. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.

50. As a result of the foregoing, Plaintiff was subjected to assault, illegal search and undue force upon his person over the course of his false arrest.
51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
52. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

53. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.
54. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
55. As a result of the foregoing, Plaintiff was deprived of liberty and sustained great emotional injuries.
56. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

FEDERAL CLAIMS**FIRST CLAIM FOR RELIEF****DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

57. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
58. All of the aforementioned acts of defendants NYPD OFFICERS RYAN H. MARAIO, CHARLES D. MIELE, and NYPD OFFICERS JOHN and JANE DOE #1-12, their agents, servants, and employees, were carried out under the color of state law.
59. All of the aforementioned acts deprived Plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
60. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
61. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.
62. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF**EXCESSIVE FORCE UNDER 42 U.S.C. § 1983**

63. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
64. Plaintiff's constitutional rights were violated when NYPD OFFICERS RYAN H. MARAIO, CHARLES D. MIELE and NYPD OFFICERS JOHN and JANE DOE #'s 1-12 subjected him to excessive force by grabbing his arm and deliberately placing the handcuffs on his wrists in a tight manner. He later sought medical attention for the injuries to his wrists and hands post-incarceration.
65. The use of force was objectively unreasonable. Plaintiff did not pose a threat to the safety of any officer, as he was not resisting arrest and was at the scene of his arrest in his official capacity with the JCC. He never attempted to assault or threatened to harm any officer. Plaintiff never resisted arrest.
66. As a result of this conduct, Plaintiff's rights under the fourth, eighth, and fourteenth Amendments of the United States Constitution were violated.

THIRD CLAIM FOR RELIEF**FALSE ARREST UNDER 42 U.S.C. § 1983**

67. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
68. As a result of the aforesaid conduct by defendants NYPD OFFICERS RYAN H. MARAIO, CHARLES D. MIELE and NYPD OFFICERS JOHN and JANE DOE #1-12, Plaintiff was subjected to an illegal, improper, and false arrest by the defendants NYPD OFFICERS RYAN H. MARAIO, CHARLES D. MIELE and NYPD OFFICERS JOHN and JANE DOE #1-12, taken into

custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege, or consent.

69. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

FOURTH CLAIM FOR RELIEF

UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983

70. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
71. Plaintiff was searched by defendants NYPD OFFICERS RYAN H. MARAIO, CHARLES D. MIELE and NYPD OFFICERS JOHN and JANE DOE #1-12 without an individualized reasonable suspicion that Plaintiff had committed any crime or was in possession of any illicit contraband, illegal weapons, or any other illegal substances.
72. Plaintiff's vehicle, including the glove box and trunk of the car, were searched without permission, consent, or authority. Plaintiff was never alleged to have committed a crime or traffic infraction while using the vehicle. He was never alleged to have possessed weapons or contraband within the vehicle. There were no weapons or contraband in plain view. As such, defendant officers' search of the vehicle was unlawful.
73. As a result of the aforesaid conduct by defendants NYPD OFFICERS RYAN H. MARAIO, CHARLES D. MIELE and NYPD OFFICERS JOHN and JANE DOE #1-12, Plaintiff's unlawfully approached Plaintiff and improperly searched his person and his vehicle without consent, a valid warrant, probable cause, or a specific articulable factual basis supporting a reasonable suspicion and/or probable cause to believe Plaintiff had committed any crime or was in possession of

contraband or any illegal substance as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.

74. As a result of the foregoing, Plaintiff was deprived of his Constitutional rights and has suffered mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

FIFTH CLAIM FOR RELIEF

DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983

75. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
76. Defendants NYPD OFFICERS RYAN H. MARAIO, CHARLES D. MIELE and NYPD OFFICERS JOHN and JANE DOE #1-12 created false evidence against the plaintiff, alleging that he committed the crime of grand larceny in the third degree and criminal possession of a forged instrument in the 2nd degree.
77. Defendants NYPD OFFICERS RYAN H. MARAIO, CHARLES D. MIELE and NYPD OFFICERS JOHN and JANE DOE #1-12 forwarded false evidence and false information to prosecutors in the New York County District Attorney's Office – namely, the defendants falsely informed prosecutors *inter alia*, that Plaintiff had committed grand larceny, when there was no objective proof whatsoever that such crime was committed.
78. Defendants NYPD OFFICERS RYAN H. MARAIO, CHARLES D. MIELE and NYPD OFFICERS JOHN and JANE DOE #1-12 misled the prosecutors by creating false evidence against the Plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.
79. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants NYPD OFFICERS RYAN H. MARAIO, CHARLES D. MIELE and NYPD OFFICERS JOHN and JANE DOE #1-12

violated Plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

80. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

SIXTH CLAIM FOR RELIEF
FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

81. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
82. Defendant NYPD OFFICERS RYAN H. MARAIO, CHARLES D. MIELE and NYPD OFFICERS JOHN and JANE DOE #1-12 had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in defendants' presence by subjecting him to excessive force. Plaintiff repeatedly asked officers to stop assaulting him, but his requests were ignored. He later requested medical care multiple times and his requests were also ignored.
83. Defendant NYPD OFFICERS RYAN H. MARAIO, CHARLES D. MIELE and NYPD OFFICERS JOHN and JANE DOE #1-12 further violated Plaintiff's constitutional rights when they failed to intercede and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.
84. As a result of the defendants' failure to intercede when Plaintiff's constitutional rights were being violated in defendants' presence, Plaintiff sustained, *inter alia*, emotional injuries, Plaintiff's liberty was restricted for an extended period of time, he was assaulted by officers, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

SEVENTH CLAIM FOR RELIEF**MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

85. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
86. Defendant NYPD OFFICERS RYAN H. MARAIO, CHARLES D. MIELE and NYPD Officers John and Jane Doe #'s 1-12 misrepresented and falsified evidence before the New York County District Attorney, including false allegations that Plaintiff committed the crime of obstruction of government administration and the violation of disorderly conduct.
87. Defendant NYPD OFFICERS RYAN H. MARAIO, CHARLES D. MIELE and NYPD Officers John and Jane Doe #'s 1-12 did not make a complete and full statement of facts to the District Attorney. In particular, they failed to inform the District Attorney of objective evidence of Plaintiff's innocence.
88. Defendant NYPD OFFICERS RYAN H. MARAIO, CHARLES D. MIELE and NYPD Officers John and Jane Doe #'s 1-12 withheld exculpatory evidence from the District Attorney, including that they had unlawfully seized Plaintiff's phone and then retaliated with excessive force when he tried to peacefully retrieve it.
89. Defendant NYPD OFFICERS RYAN H. MARAIO, CHARLES D. MIELE and NYPD Officers John and Jane Doe #'s 1-12 were directly and actively involved in the initiation of criminal proceedings against plaintiff.
90. Defendant NYPD OFFICERS RYAN H. MARAIO, CHARLES D. MIELE and NYPD Officers John and Jane Doe #'s 1-12 lacked probable cause to initiate criminal proceedings against plaintiff.
91. Defendant NYPD OFFICERS RYAN H. MARAIO, CHARLES D. MIELE and NYPD Officers John and Jane Doe #'s 1-12 acted with malice in initiating criminal proceedings against plaintiff.

92. Defendant NYPD OFFICERS RYAN H. MARAIO, CHARLES D. MIELE and NYPD Officers John and Jane Doe #'s 1-12 misrepresented and falsified evidence throughout all phases of the criminal proceedings.
93. Specifically, defendant NYPD OFFICERS RYAN H. MARAIO, CHARLES D. MIELE and NYPD Officers John and Jane Doe #'s 1-12 made the aforementioned false and misleading allegations regarding the circumstances surrounding Plaintiff's arrest. In reality, Plaintiff never obstructed any government duties or acted in a disorderly manner.
94. Notwithstanding the perjurious and fraudulent conduct of defendant NYPD OFFICERS RYAN H. MARAIO, CHARLES D. MIELE and NYPD Officers John and Jane Doe #'s 1-12, the criminal proceedings were terminated in Plaintiff's favor on December 8, 2022.
95. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

EIGHTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

96. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
97. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
98. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- a. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
 - b. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
 - c. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
 - d. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and
 - e. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.
99. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the Plaintiff.
100. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the Plaintiff as alleged herein.
101. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the Plaintiff as alleged herein.
102. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the Plaintiff' constitutional rights.

103. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the Plaintiff's constitutional rights.

104. The acts complained of deprived the Plaintiff of his right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon them; and
- D. To receive equal protection under the law.

WHEREFORE, DAVID ASHBY, Plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
December 6, 2023

Respectfully submitted:

By: /s/ Sydney O'Hagan
Sydney O'Hagan, Esq.
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Suite 1000
New York, New York 10005
(774) 218-3461
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TO:
CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007
NYPD OFFICER RYAN H. MARAIO (Shield # 5216), 60th Precinct, Brooklyn, New York
NYPD LIEUTENANT CHARLES D. DMIELE, 60th Precinct, Brooklyn, New York

ATTORNEY'S VERIFICATION

I, **SYDNEY O'HAGAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
December 6, 2023

/s/ *Sydney O'Hagan*
Sydney O'Hagan, Esq.